

Federal Constitution

NOTES

Art. 142—(*cont.*)

Clause (3A): Added by Act A514, paragraph 11(c), in force from 15-05-1981.

Note:

The amendments made in Article 142(2)(b) and (2A) by Act A566 shall apply only to a person who is appointed a member of any of the Commissions on or after 16-12-1983.

Clause (4)(b): See Art. 146c(2).

Clause (6)

- a. The words “a judge of the Federal Court or of a High Court” substituted for the words “a judge of the Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.
- b. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
- c. The words “Federal Court, of the Court of Appeal” substituted for the words “Supreme Court” by Act A885, paragraph 32(b), in force from 24-06-1994.

under federal law to perform the functions of his office may during that period perform also his functions as a member of the Commission.

(5) A Commission to which this Part applies may act notwithstanding a vacancy in its membership, and no proceedings of such a Commission shall be invalidated by reason only that some person not entitled thereto has taken part in them.

(6) Before exercising his functions as a member of any of the said Commissions or under Clause (4) any person other than an *ex officio* member shall take and subscribe before a judge of the Federal Court, of the Court of Appeal or of a High Court the oath of office and allegiance set out in the Sixth Schedule.

Conditions of service of members of Commissions

143. (1) Save as provided under Clause (2) of Article 142, a member of a Commission to which this Part applies, other than an *ex officio* member—

- (a) shall be appointed for a term of five years or, if the Yang di-Pertuan Agong, acting in his discretion but after considering the advice of the Prime Minister, in a particular case so determines, for such shorter term as he may so determine;
- (b) may, unless disqualified, be reappointed from time to time; and
- (c) may at any time resign his office but shall not be removed from office except on the like grounds and in the like manner as a judge of the Federal Court.

(2) Parliament shall by law provide for the remuneration of any member of the said Commission other than a member for whose remuneration as holder of any other office provision is made by federal law; and the remuneration so provided shall be charged on the Consolidated Fund.

(3) The remuneration and other terms of office of a member of a Commission to which this Part applies shall not be altered to his disadvantage after his appointment.

Federal Constitution

NOTES

Art. 143

Clause (1)

The words “Save as provided under Clause (2) of Article 142, a” substituted for the word “A” at the beginning of the Clause by Act A514, section 12, in force from 15-05-1981.

Clause (1)(c)

- a. The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.
- b. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
- c. The word “Federal” substituted for the word “Supreme” by Act A885, section 33, in force from 24-06-1994.

Clause (2)

- a. *See* Art. 146c(2).
- b. *See* Service Commissions Act 1957 [*Act 393*].

Functions of Service Commissions

144. (1) Subject to the provisions of any existing law and to the provisions of this Constitution, it shall be the duty of a Commission to which this Part applies to appoint, confirm, emplace on the permanent or pensionable establishment, promote, transfer and exercise disciplinary control over members of the service or services to which its jurisdiction extends.

(2) Federal law may provide for the exercise of other functions by any such Commission.

(3) The Yang di-Pertuan Agong may designate as special posts any post held by the head or deputy head of a department or by an officer who in his opinion is of similar status; and the appointment to any post so designated shall not be made in accordance with Clause (1) but shall be made by the Yang di-Pertuan Agong on the recommendation of the Commission whose jurisdiction extends to the service in which the post is held.

(4) The Ruler or Yang di-Pertua Negeri of a State may designate as special posts any posts in the public service of his State held by the head or deputy head of a department or by an officer who in his opinion is of similar status; and the appointment to any post so designated shall not be made in accordance with Clause (1) but shall be made by the Ruler or Yang di-Pertua Negeri on the recommendation of the Public Services Commission (or, if there is in the State a State Public Service Commission, on the recommendation of that Commission).

(5) Before acting, in accordance with Clause (3) or (4), on the recommendation of the Commission therein mentioned—

(a) the Yang di-Pertuan Agong shall consider the advice of the Prime Minister; and

(b) the Ruler or Yang di-Pertua Negeri shall consider the advice of the Chief Minister of his State,

and may once refer the recommendation back to the Commission in order that it may be reconsidered.

(5A) Save as provided in Clause (5B), federal law and, subject to the provisions of any such law, regulations made by the Yang di-Pertuan Agong may, notwithstanding the provisions of Clause (1) of Article 135, provide for the exercise by any officer in a

Federal Constitution

NOTES

Art. 144

1. *See* Art. 139 & 144(1).

Clause (3)

- a. The words “, other than posts in the judicial and legal service” which appeared after the words “similar status” were deleted by Act 10/1960, paragraph 25(a), in force from 31-05-1960, but were restored by Act 26/1963, subsection 53(3), in force from 16-09-1963.
- b. The words “other than posts in the judicial and legal service” were deleted by Act A354, section 34, in force from 27-08-1976.
- c. For list of designated posts—*See* L.N. (N.S) 119/1957 & 397/1958.

Clause (4)

- a. The words “a State Public Service Commission” substituted for the words “of any Ruler a Commission of corresponding status and jurisdiction” by Act 26/1963, section 70, in force from 16-09-1963.
- b. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

Clause (5)(b)

The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

Clause (5A)

- a. Added by Act 10/1960, paragraph 25(b), in force from 31-05-1960.
- b. The words “Save as provided in Clause (5B)” at the commencement were inserted by Act 59/1966, section 2, in force from 19-09-1966.
- c. In the proviso to paragraph (a), the words “or of any power of promotion” were substituted for the words “or to any power of promotion” by Act A31, section 6, in force from 24-03-1971.

2. *See*—

- i. Public Services Promotion Board Regulations 1967, in P.U. 291/1967, as amended by P.U. 180/1968, 249/1968, P.U. (A) 285/1969.
- ii. Public Services Disciplinary Board Regulations 1967, in P.U. 292/1967, as amended by P.U. 181/1968, 249/1968, P.U. (A) 284/1969.
- iii. Public Services Commission (Promotion) (Appeal Board) Rules 1968, in P.U. 386/1968.

service to which the jurisdiction of a Commission to which this Part applies extends, or by any board of such officers, of any of the functions of the Commission under Clause (1):

Provided that—

- (a) no such law or regulation may provide for the exercise by any such officer or board of officers of any power of first appointment to the permanent or pensionable establishment, or of any power of promotion (other than promotion to an acting appointment); and
- (b) any person aggrieved by the exercise by any such officer or board of officers of any power of disciplinary control may appeal to the Commission within such time and in such manner as may be prescribed by any such law or regulations, and the Commission may make such order thereon as it may consider just.

(5B) (i) Notwithstanding the provisions of Clause (1) of Article 135 and Article 139 and Article 141A, all the powers and functions of the Public Services Commission or the Education Service Commission established under Article 139 and Article 141A, other than the power of first appointment to the permanent or pensionable establishment, may be exercised by a board appointed by the Yang di-Pertuan Agong.

(ii) Any person aggrieved by the exercise by the board of any of the aforesaid powers or functions may appeal to an Appeal Board appointed by the Yang di-Pertuan Agong.

(iii) The Yang di-Pertuan Agong may by regulations provide for matters relating to the appointments of the members of, and the procedure to be followed by, the board or the Appeal Board under this Clause.

(iv) Where the Yang di-Pertuan Agong has appointed the board under paragraph (i) of this Clause for the purpose of exercising any of the powers or functions referred to under that paragraph, such power or function shall so long as it remains a power or function to be exercised by the board, cease to be exercisable by the said Commission.

(6) A Commission to which this Part applies may delegate to any officer in a service to which its jurisdiction extends, or to any board of such officers appointed by it, any of its functions under

Federal Constitution

NOTES

Art. 144—(*cont.*)

Clause (5B)

- a. Added by Act 59/1966, section 2, in force from 19-09-1966.
- b. Subparagraph (i) was substituted by Act A193, section 5, in force from 01-01-1974. The earlier subparagraph read as follows:
 - “(i) Notwithstanding the provisions of Clause (1) of Article 135 and Article 139, all the powers and functions of the Public Services Commission established under Article 139, other than the power of first appointment to the permanent or pensionable establishment, may be exercised by a board appointed by the Yang di-Pertuan Agong.”.

Clause (6A): Added by Act 25/1963, section 4, in force from 29-08-1963.

Clause (1) in respect of any grade of service, and that officer or board shall exercise those functions under the direction and the control of the Commission.

(6A) In respect of members of the general public service of the Federation who are employed in posts ancillary to the armed forces or any of them or to the police force, or in respect of any grade of members of that service who are so employed, functions of the Public Services Commission may, under Clause (5A) or (6), be made exercisable by an officer or board of officers of the armed forces or police force, as the case may be, as if he or they were members of the general public service of the Federation.

(7) In this Article “transfer” does not include transfer without change of rank within a department of Government.

(8) A Commission to which this Part applies may, subject to the provisions of this Constitution and of federal law, make rules regulating its procedure and specifying the number of its members which are to constitute a quorum.

Attorney General

145. (1) The Yang di-Pertuan Agong shall, on the advice of the Prime Minister, appoint a person who is qualified to be a judge of the Federal Court to be the Attorney General for the Federation.

(2) It shall be the duty of the Attorney General to advise the Yang di-Pertuan Agong or the Cabinet or any Minister upon such legal matters, and to perform such other duties of a legal character, as may from time to time be referred or assigned to him by the Yang di-Pertuan Agong or the Cabinet, and to discharge the functions conferred on him by or under this Constitution or any other written law.

(3) The Attorney General shall have power, exercisable at his discretion, to institute, conduct or discontinue any proceedings for an offence, other than proceedings before a Syariah court, a native court or a court-martial.

(3A) Federal law may confer on the Attorney General power to determine the courts in which or the venue at which any proceedings which he has power under Clause (3) to institute shall be instituted or to which such proceedings shall be transferred.

Federal Constitution

NOTES

Art. 144—(cont.)

Clause (8): See Art. 146c(3).

Art. 145

The present Article was substituted by Act 10/1960, section 26, in force from 16-09-1963. The earlier Article read as follows:

“145. (1) The Yang di-Pertuan Agong shall, after consultation with the Judicial and Legal Service Commission, appoint from among the members of the judicial and legal service an Attorney General, who shall be a person qualified to be a judge of the Federal Court.

(2) The Attorney General shall advise on legal matters referred to him by the Yang di-Pertuan Agong or the Cabinet, and shall have power, exercisable at his discretion, to institute, conduct or discontinue any proceedings for an offence, other than proceedings before a Muslim court, a native court or a court-martial.

(3) The Attorney General shall have the right of audience in, and shall take precedence over any other person appearing before, any court or tribunal.

(4) Subject to Clause (5), the Attorney General shall hold office until he attains the age of sixty-five years or such later time, not later than six months after he attains that age, as the Yang di-Pertuan Agong may approve.

(5) The Attorney General may at any time resign his office but shall not be removed from office except on the like grounds and in the like manner as a judge of the Federal Court.”.

Clauses (1) & (6)

- a. The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.
- b. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
- c. The word “Federal” substituted for the word “Supreme” by Act A885, section 34, in force from 24-06-1994.

Clause (3)

- a. The words “a native court” were inserted after the words “Muslim court” by Act 26/1963, section 70, in force from 16-09-1963.
- b. The words “Syariah Court” substituted for the words “Muslim Court”, by Act A354, section 45, in force from 27-08-1976.

Clause (3A): Added by Act A704, section 10, in force from 10-06-1988.

(4) In the performance of his duties the Attorney General shall have the right of audience in, and shall take precedence over any other person appearing before, any court or tribunal in the Federation.

(5) Subject to Clause (6), the Attorney General shall hold office during the pleasure of the Yang di-Pertuan Agong and may at any time resign his office and, unless he is a member of the Cabinet, shall receive such remuneration as the Yang di-Pertuan Agong may determine.

(6) The person holding the office of Attorney General immediately prior to the coming into operation of this Article shall continue to hold the office on terms and conditions not less favourable than those applicable to him immediately before such coming into operation and shall not be removed from office except on the like grounds and in the like manner as a judge of the Federal Court.

Reports of Commissions

146. (1) Each of the Commissions to which this Part applies shall make an annual report on its activities to the Yang di-Pertuan Agong and copies of those reports shall be laid before both Houses of Parliament.

(2) The Public Services Commission shall send a copy of every report made under this Article to the Ruler or Yang di-Pertua Negeri of each State to members of whose public service their jurisdiction extends, and the Ruler or Yang di-Pertua Negeri shall lay it before the Legislative Assembly.

146A. *(Repealed).*

146B. *(Repealed).*

146C. *(Repealed).*

Jurisdiction of Police Force Commission over seconded members of State service in States of Sabah and Sarawak

146D. Notwithstanding Clause (2) of Article 134, the jurisdiction of the Police Force Commission shall extend to members of the public service of the State of Sabah or Sarawak who are seconded to the police force; and for purposes of the Police Force